

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**-----X
WAYNE NEWTON ,

Plaintiff

- against -

**THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER RICHARDS RABIL
(Shield No.03289) and
POLICE OFFICER IVAN LUGO
(Shield No.28665) of PSA 7,**Defendants.
-----XIndex No. _____
Purchased _____
Plaintiff designates Bronx
County as the place of trialThe basis of the venue is
where the tort arose**SUMMONS**12 MAY 14 PM 2:30
COUNTY CLERK
BRONX COUNTY

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
May 1, 2012

JEFFREY W. RIZZO, ESQ.
Attorney for Plaintiff
888 Grand Concourse, Suite 1J
Bronx, New York 10451
(718) 618-7509Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

-----X
WAYNE NEWTON,

Plaintiff,

**Index No.
Verified Complaint**

- against -

**THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER RICHARDS RABIL
(Shield No.03289) and
POLICE OFFICER IVAN LUGO
(Shield No.28665) of PSA 7,**

Defendants.
-----X

Plaintiff WAYNE NEWTON, by his attorney JEFFREY W. RIZZO, Esq.,
principal, complaining of the Defendants, respectfully shows to this Court and alleges the
following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff WAYNE NEWTON
(hereinafter "MR. NEWTON") was a resident of Bronx County, City and State of New
York.

2. At all times hereinafter mentioned, Defendant THE CITY OF NEW
YORK (hereinafter "CITY"), was and still is a municipal corporation organized and
existing under and by virtue of the laws of the State of New York.

3. At all times hereinafter mentioned, POLICE OFFICER RICHARDS
RABIL, (hereinafter "RABIL") was and still is a Police Officer employed by the
Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT (hereinafter
"NYPD").

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COUNTY CLERK
BRONX COUNTY

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4. On and prior to February 14, 2011, RABIL was employed by Defendants CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

5. The actions of RABIL described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

6. At all times hereinafter mentioned, POLICE OFFICER IVAN LUGO, (hereinafter "LUGO") was and still is a Police Officer employed by the Defendant CITY and the NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYPD").

7. On and prior to February 14, 2011, LUGO was employed by Defendants CITY and NYPD and was assigned in the Borough and County of Bronx, City and State of New York.

8. The actions of LUGO described herein were performed within the scope of his employment and authority and while he acted as an agent, servant and employee of Defendants CITY and NYPD.

BACKGROUND

9. On or about February 14, 2011, RABIL and LUGO, acting as agents, servants and employees of Defendants CITY and NYPD, without just cause or provocation, intentionally and falsely accused MR. NEWTON of having committed the crimes of P.L. § 140.15 (1) Criminal Trespass in the Second Degree and related charges.

10. On or about February 14, 2011, Defendants, their agents, servants and/or employees, intentionally placed MR. NEWTON under arrest without just cause or provocation and with reckless and negligent disregard for the truth.

11. On or about February 14, 2011, a criminal complaint was issued at the directive of Defendants, and a criminal action against MR. NEWTON was commenced.

12. On or about February 15, 2011, MR. NEWTON made a court appearance and was arraigned. He was released on his own recognizance by the Court and the case was adjourned to April 13, 2011.

13. Following the April 13, 2011 court date MR. NEWTON was required to appear in court approximately seven more times.

14. On or about April 10, 2011, MR. NEWTON made a court appearance during which all charges were dismissed on application of the District Attorney's Office.

15. As a result of the treatment of MR. NEWTON by the Defendants, MR. NEWTON was denied liberty by being falsely arrested and imprisoned for approximately twenty-four (24) hours.

16. MR. NEWTON suffered emotional injuries due to the conduct of the Defendants. As a result of being falsely arrested and detained for twenty-four (24) hours, MR. NEWTON suffered humiliation, fear for his safety and other emotional distress.

PROCEDURAL POSTURE

17. On April 16, 2012, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

18. On April 17, 2012, Plaintiff filed an Order to Show Cause for leave to serve and file a late Notice of Claim *nunc pro tunc* to a date within 90 days of February 14, 2011.

19. The motion is scheduled to be heard on May 10, 2012 in Supreme Court, Bronx County.

20. This action has been commenced within one year and ninety days after the cause of actions of Plaintiff accrued.

FIRST CAUSE OF ACTION: FALSE ARREST

21. Paragraphs 1-20 are incorporated by reference as fully set forth herein.

22. On February 14, 2011 at approximately 8:30 p.m., inside 1270 Webster Avenue in Bronx County, Defendants RABIL AND LUGO wrongfully touched, grabbed, handcuffed and seized MR. NEWTON, in an excessive manner about his person, causing MR. NEWTON physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch Plaintiff. MR. NEWTON was aware of his arrest and confinement as described in paragraphs 1-19, and he did not consent to that arrest or confinement, nor was it privileged by law.

23. As a result of being falsely arrested by the Defendants, MR. NEWTON sustained multiple injuries. He was denied liberty and the ability to enjoy life for approximately twenty-four (24) hours. He also suffered emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

24. Paragraphs 1-23 are incorporated by reference as though fully set forth herein.

25. The Defendants, their agents, servants and employees, arrested and confined MR. NEWTON, as described in paragraphs 1-23, and intended to confine MR. NEWTON. MR. NEWTON was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

26. As a result of being falsely imprisoned by the Defendants, MR. NEWTON sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

27. Paragraphs 1-26 are incorporated by reference as though fully set forth herein.

28. In arresting MR. NEWTON, RABIL AND LUGO acting in their capacity as agents, servants and employees of Defendants CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

29. In arresting MR. NEWTON, RABIL AND LUGO acting in their capacity as agents, servants and employees of Defendants CITY and NYPD, sought either a detriment to MR. NEWTON or a collateral advantage to the Defendants that is outside of the legitimate ends of making an arrest.

30. As a result of the abuse of process by the Defendants, MR. NEWTON sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: NEGLIGENCE

31. Paragraphs 1-30 are incorporated by reference as though fully set forth herein.

32. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process and malicious prosecution were caused solely by the negligence of the Defendants, their agents, servants and/or employees.

33. As a result of the negligence of the Defendants, MR. NEWTON sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

FIFTH CAUSE OF ACTION ASSAULT AND BATTERY

34. Paragraphs 1-33 are incorporated by reference as though fully set forth herein.

35. On February 14, 2011 at approximately 6:30 pm inside 1270 Webster Avenue in Bronx County, Defendants RABIL AND LUGO along with other New York City police officers, wrongfully touched, grabbed, pushed, handcuffed and seized MR. NEWTON, in an excessive manner about his person, causing MR. NEWTON physical pain and mental suffering.

36. That on or about February 14, 2011, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff MR. NEWTON was intentionally touched, grabbed, pushed, assaulted, violated, humiliated and handcuffed by RABIL AND LUGO, along with other New York City police officers who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

37. That on or about February 14, 2011 RABIL AND LUGO, along with other New York City police officers their agents, servants and employees, acting as agents and on behalf of the CITY and NYPD within the scope of their employment, did intentionally, willfully and maliciously assault and batter MR. NEWTON, in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to MR. NEWTON and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner intentionally touched the plaintiff and/or made offensive bodily contact to MR. NEWTON and caused such battery in and about his chest, body and limbs. At no time did MR. NEWTON consent to the aforesaid assault and battery.

38. While not conceding that said arrest was lawful or made upon probable cause, the aforesaid intentional assault and battery during the arrest was excessive. The excessive force used, including but not limited to the pushing, shoving and grabbing of MR. NEWTON, was an assault and battery beyond that which was necessary to make the arrest.

39. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, in particular RABIL AND LUGO, along with other New York City police officers acting within the scope of their employment and authority and without any probable or reasonable cause, MR. NEWTON suffered bodily injury in and about his body and limbs and suffered conscious pain and suffering, and that he was otherwise damaged.

SIXTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

40. Paragraphs 1-39 are incorporated by reference as though fully set forth herein.

41. Defendants CITY and NYPD, through its agents, servants and employees, had the responsibility for supervising, disciplining, evaluating and training RABIL AND LUGO, as well as all of the other NYPD officers involved in this matter.

42. Defendants CITY and NYPD have grossly failed to train and properly supervise its police officers, particularly the detectives and police officers involved herein, regarding the law of arrest, search and seizure.

43. Defendants CITY and NYPD were negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or sufficient cause.

44. The foregoing acts, omissions and systematic failures are customs and policies of the Defendants, which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize Plaintiff.

45. Defendants CITY and NYPD had the responsibility for supervising, disciplining, evaluating and training the police officers involved herein, including RABIL AND LUGO.

46. Defendants CITY and NYPD were negligent in supervising, disciplining, evaluating and training the police officers involved herein, including RABIL AND LUGO.

47. As a result of the negligence of Defendants CITY, NYPD and RABIL AND LUGO, MR. NEWTON sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

SEVENTH CAUSE OF ACTION: NEGLIGENT HIRING

48. Paragraphs 1-47 are incorporated by reference as though fully set forth herein.

49. Defendants CITY and NYPD had the responsibility for hiring RABIL AND LUGO.

50. Defendants CITY and NYPD were negligent in hiring RABIL AND LUGO.

51. As a result of the negligence of the Defendants, MR. NEWTON sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, New York
May 1, 2012

Yours, etc.,



JEFFREY W. RIZZO, ESQ.
Attorney for Plaintiff
888 Grand Concourse, Suite 1J
Bronx, NY 10451
718-618-7509

VERIFICATION

STATE OF NEW YORK)
COUNTY OF BRONX) ss:

WAYNE NEWTON, being duly sworn, deposes and states that he is the individual Claimant in the within action; that he has read the forgoing Claim and knows the contents thereof; that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief; and that as to those matters he believes them to be true.


WAYNE NEWTON

Sworn to before me, this 1st day of May, 2012.


Notary Public

CHARLES I. CHONG
NOTARY PUBLIC-STATE OF NEW YORK
No. 01CH6125991
Qualified In Bronx County
Commission Expires May 23, 2013

CERTIFICATION

I, JEFFREY W. RIZZO, ESQ., certifies, that, to the best of my knowledge, information and belief, the presentation of the paper is not frivolous and, where the paper is an initiating pleading, that the matter was not obtained through illegal conduct or, if it was, that the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing fees and that the matter was not obtained in violation of DR 7-111. (22 N.Y.C.R.R. 130-1.1-a[b]).


JEFFREY W. RIZZO, ESQ.